DEPARTMENT OF EARLY CHILDHOOD

Division of Early Learning, Licensing, and Administration

CHILD CARE FACILITY LICENSING RULES AND REGULATIONS

8 CCR 1402-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

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2.600 RULES REGULATING SPECIAL ACTIVITIES

2.601 AUTHORITY

These rules and regulations are adopted pursuant to the rulemaking authority provided in section 26.5-1-105(1), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, sections 24-4-101 through 24-4-204 (the "APA"), C.R.S., the Anna Jo Garcia Haynes Early Childhood Act, sections 26.5-1-101 through 26.5-6-103 (the "Early Childhood Act"), C.R.S., the Child Care Licensing Act, sections 26.5-5-301 through 26.5-5-329, C.R.S.; and the Child Care Development and Block Grant Act of 2014, 42 U.S.C. sec. 9858e.

The specific rulemaking authorities granted for Special Activities include section 26.5-5-314, C.R.S.

2.602 SCOPE AND PURPOSE

These rules and regulations shall govern the processes and procedures to become a licensed child care facility, and the health and safety requirements of licensed child care facilities in Colorado. These rules and regulations shall govern the health and safety requirements for special activities including Swimming, shoreline and wading activities, watercraft on flatwater, watercrafts on class I or class II moving water, white water rafting on class III and above, archery, riflery, ax-throwing, use of knives, horseback riding, rock climbing and climbing walls, single and or multi pitch climbing, high and or low ropes challenge courses, hiking, backpacking and camping, biking on public roads or mountain trails.

2.603 APPLICABILITY

The provisions of these rules and regulations shall be applicable to licensed child care providers participating in special activities, which include licensed School Age Child Care, Child Care Centers, Family Child Care Homes, and Children's Resident Camps.

2.604 DEFINITIONS

A. "Action" means the functional mechanism that loads, fires, and ejects ammunition from a firearm.

B. "Auto Belay" means an automatic electro-mechanical or mechanical climbing belay system. It replaces the need for a human belayer as the auto-belay automatically retracts the climbing rope, taking up the slack as you climb. A qualified individual must monitor the auto-belay system and attached climber.

C. "Ax" means an ax or hatchet tool that consists of a heavy edged head attached to a handle.

D. "Backstop or bullet stop" means a device, raised mound of earth, or suitable natural feature behind the targets, which is designed to safely capture fired bullets and constructed of material that prevents projectile ricochet.

E. "Biking" means bicycling on a non-motorized bicycle.

F. "Bouldering" is a form of free climbing that is performed on small rock formations or artificial rock walls without the use of ropes or harnesses. Bouldering under six (6) feet in height must follow all Playground Safety Regulations as listed in rule sections 2.230(C) of the rules regulating Child Care Centers, 2.337(B) of the rules regulating Family Child Care Homes, 2.424(G) of the rules regulating Children's Resident Camps, and 2.524(A) of the rules regulating School-Age Child Care Centers.

1. Or the program must submit a written plan for Department approval as stated in this rule section 2.605(D). Bouldering over six (6) feet in height must follow all regulations as listed in rule section 2.618, or the program must submit a written plan for Department approval as stated in this rule section 2.605(D).

G. "Class I moving water" means fast-moving water with small waves and riffles.

H. "Class II moving water" means water that has medium-sized waves and some minor rocks or other obstacles. The water moves fast enough to create whitecaps that are one to three (1–3) feet high.

I. "Firing distance" means the distance between the firing line and the target line.

J. "Firing line" means a line parallel to the targets, from behind which firearms are discharged.

K. "Firing point" means specific locations from which individual participants engage their targets.

L. "Flat Water" means calm, level, or a slow-flowing water channel.

M. "Hiking" means walking outdoors on a trail, or off trail, for recreational purposes may entail various, uphill, or downhill or rough terrains and may require more equipment preparedness and ability.

N. "Nocking an arrow" means to fit (an arrow) against the bowstring.

O. "Target line" means a line parallel to the firing line along which targets are placed.

P. "Top rope climbing" means a style of climbing where the rope runs from the climber's harness up to an anchor system at the top of the route and back down to the belayer on the ground. This creates a continuous loop that protects the climber in case of a fall.

Q. "Watercraft" means non-motorized vessels including sailboat(s), paddleboat(s), paddleboard(s), canoe(s), kayak(s), rowboat(s), float tube(s), and rafts.

2.605 GENERAL PROVISIONS

A. All activities must operate under the applicable federal, state, and local laws, codes, and regulations. Programs must obtain all required permits and licenses in the location where the activities are taking place. Documentation of permits and licenses must be available for the Department to review.

B. There shall be written policies and procedures that reflects the purpose of the program, including a list of activities. The policies and procedures must be provided to parents or guardians.

C. Parents must be given the opportunity to indicate to a program whether they do not want their child to participate in a special activity.

D. If the program participates in special activities other than those for which rules are found in this rule section, the program must submit a written plan to the Department for review prior to participating in the activity. The plan must include at least, the following:

1. The qualifications of the instructor as applicable to the activity;

2. The qualifications, of any other staff members or activity leaders participating in the activity;

3. The number of necessary staff members and supervision of children participating in the activity;

4. The number of children allowed to participate in the activity;

5. The staff-to-child ratios and group size of children participating in the activity;

6. Conditions under which a child may participate in the activity, such as age or skill level of the child;

7. Any special equipment necessary, how the equipment will be stored, maintained, inspected, and replaced as needed.

8. Access to medical treatment;

9. Development of an emergency plan;

10. Age and developmentally appropriate safety considerations; and

11. Geographic location of where the activity will take place.

E. Paint ball activities where children shoot paint balls at other children are prohibited.

F. The instructor for each special activity must be at least eighteen (18) years of age (unless otherwise defined in this rule section and is responsible for overseeing the special activity, as well as setting standards for the selection and training of activity leaders and staff.

1. The qualified instructor of each special activity must:

a. Provide annual training and orientation for all staff participating in the activity in the operating, safety, emergency, and supervision procedures of the activity.

1. Documentation of training must include the following:

(a) Title of training.

(b) Date and clock hours of training.

(c) The name or signature of the trainer, or other approved method of verifying the identity of trainer or entity.

b. Assign duties to activity leaders and staff members.

c. Assure that all necessary equipment is complete, in good repair, and safe to use.

d. Assure that environmental hazards are not severe enough to cause danger to children.

G. Safety plans and rules shall be reviewed with participants at the beginning of each activity.

H. All staff must be familiar with safety plans and rules for each activity they will be supervising.

I. First Aid supplies shall be available at each special activity. The contents of each kit shall be adequate for the number of children and appropriate for the type of activity.

J. The staff to child ratio for each type of program must be followed according to rules for that license type unless the ratio is different for the specified activity, in which case the activity staff to child ratio should apply. See rule sections 2.500 regulating School-Age Care Centers, 2.200 regulating Child Care Centers, 2.400 regulating Children's Resident Camps, and 2.300 regulating Family Child Care Homes.

K. There must be a staff member with current Department-approved First Aid and CPR training at each activity location.

1. If any activity is more than thirty (30) minutes from emergency medical services, at least one (1) staff member with the group must hold a current Wilderness First aid Training certification.

L. If a child requires medication while away from the program, there must be at least one (1) staff member present with the group with current Department-approved medication administration training who has been delegated by a registered nurse or physician to administer medications. The program must not exclude children with health conditions requiring medications from participating in these activities.

1. For family child care homes participating in special activities rule section 2.321(C)(2) regarding medication administration and mediation delegation apply.

M. No child shall be forced to participate in any activity.

N. If children are participating in multiple activities, rules regulating the specific special activity apply.

O. The program must have a plan to address emergency situations while participating in the activity.

P. A qualified staff member must be present supervising observers at the activity site and maintaining the ratios as defined at the specific ruleset the program is licensed as.

Q. For all water activities, the program must have life-saving equipment that is readily accessible during water activities if a pool or body of water is six (6) feet or more in any direction and two (2) feet or more in depth. Life-saving equipment may include a ring buoy and rope, a rescue tube, a throwing line, and a shepherd's hook or reach pole that will not conduct electricity.

R. Targets in archery, riflery, or ax throwing cannot be of the silhouette type or depict human form.

WATER ACTIVITIES

2.606 SWIMMING

If Family Child Care Homes, Child Care Centers, School-Age Child Care Centers, Children's Resident Camps, or Neighborhood Youth Organizations offer swimming activities, the following rules must be complied with:

A. Qualifications:

1. The swimming instructor must meet the following qualifications:

a. Hold a current Red Cross lifeguard training certificate or equivalent training certificate from a nationally recognized organization.

b. Ten (10) hours of documented experience indicating knowledge and skill in lifeguarding.

c. If the childcare program is offering swimming instruction, the swimming instructor must hold a current Red Cross water safety instructor certificate or equivalent certificate from a nationally recognized organization.

2. Swimming activity leaders must be at least eighteen (18) years of age and meet the following qualifications:

a. Hold a current Red Cross lifeguard training certificate or equivalent certificate from a nationally recognized organization; and,

b. Must be trained as outlined in rule section 2.605(F)(1) by a swimming instructor.

B. At any time the swimming area is open, there must be an individual with a current Red Cross lifeguard training certificate or equivalent training certificate from a nationally recognized organization present at the swimming area for each thirty (30) children in the water.

C. The staff-to-child ratio while swimming must be one to ten (1:10).

1. The swimming instructor or activity leaders do not count in the staff-to-child ratio for supervision of children.

D. The swimming area must be off limits when the swimming instructor or swimming activity leaders are not present.

E. If the program uses a pool for which they are not responsible, the program must provide a qualified lifeguard if the pool does not provide one.

F. Swimming area rules and emergency procedures must be posted in a visible location at the swimming area.

G. The swimming pool or swimming area shall meet the standards of the Colorado Department of Public Health and Environment (CDPHE), as defined in 5 CCR 1003-5 (December 15, 2020), herein incorporated by reference. No later editions or amendments are incorporated. These regulations are available from the Colorado Department of Public Health and Environment at no cost at https://www.coloradosos.gov/CCR/GenerateRulePdf.do?ruleVersionId=9173&fileName=5%20CCR%201003-5. These recommendations are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours.

H. If children are permitted to swim in a lake or pond, swimming areas must be clearly designated.

I. Before children are permitted to swim in deep water, swimming skills must be tested by properly trained swimming activity leaders.

J. There shall be a system known to children and staff for counting and supervising the children when children are in the water.

K. The following equipment must be available for use at the pool side or the lake shore in which swimming is permitted:

1. A rescue tube;

2. Reach pole; and

3. Backboard.

2.607 SHORELINE AND WADING ACTIVITIES

If Family Child Care Homes, Child Care Centers, School-Age Child Care Centers, Children's Resident Camps, or Neighborhood Youth Organizations offer shoreline and wading activities, the following rules must be complied with:

A. If a program has shoreline activities such as wading, fishing, ecology or nature studies, the program must have written policies and procedures on shoreline activities which include staff qualifications safety requirements, and staff-to-child ratios.

B. Prior to participating in shoreline activities staff members must read and be instructed on the policies and procedures.

C. The staff-to-child ratio while participating in shoreline activities must be at least one to ten (1:10).

D. If children are permitted to wade in water that is more than twenty-four (24) inches deep, a certified lifeguard must be present and on duty.

E. Before children are permitted to wade in water that is more than twenty-four (24) inches deep, swimming skills must be evaluated by properly trained swimming activity leaders. See rule section 2.606(A)(2). If determined by swimming staff, children must be wearing a United States Coast Guard approved personal flotation device sized appropriately to the activity and weight of the individual.

2.608 WATERCRAFT ON FLATWATER

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer watercraft on flatwater activities, the following regulations must be complied with:

A. Qualifications:

1. The watercraft instructor must meet one (1) of the following qualifications

a Hold a current instructor certification from the American Canoe Association or another nationally recognized organization;

b. Hold a current Red Cross lifeguard training certificate or equivalent training certificate from a nationally recognized organization;

c. Hold a current American red cross basic water rescue certificate; or

d. Eight (8) hours of documented experience indicating knowledge and skill in watercraft instruction and rescue skills specific to the watercraft activities to be conducted and have documented experience of engaging in the activity within the past two (2) years.

2. Watercraft activity leaders must be at least eighteen (18) years of age and meet the following qualifications:

a. Four (4) hours of documented experience indicating knowledge and skill in watercraft instruction specific to the watercraft activities to be conducted and have documented experience of engaging in the activity within the past two (2) years; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a Watercraft Instructor.

3. Watercraft Staff must be at least sixteen (16) years of age and meet the following qualifications:

a. Two (2) hours of documented experience indicating knowledge and skill specific to the watercraft activities taking place; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a Watercraft Instructor.

B. Supervision

1. Watercraft instructor or watercraft activity leader must be present for all watercraft activities.

a. A watercraft instructor must be on site and available to all watercraft activity leaders while watercraft activities are taking place.

2. A certified lifeguard must be present and on duty during all watercraft on flatwater activities; or

a. A watercraft instructor with current Department-approved First Aid and CPR certification must be present and on duty during all watercraft on flatwater activities.

3. The ratio while participating in watercraft on flatwater activities must be at least one to eight (1:8).

4. There shall be a minimum of two (2) staff members at the shoreline and/or on the water at all times when children are on the water. Staff must be positioned in locations where they are able to provide effective surveillance, and in close enough proximity to respond to participants within thirty (30) seconds to respond and execute rescue in an incident or emergency.

5. Before children are permitted to participate in watercraft activities, water safety skills must be evaluated by a watercraft instructor or properly trained watercraft activity leaders.

6. There must be one (1) watercraft instructor, activity leader, or staff member in any watercraft other than a kayak or paddleboard with children under seven (7) years old.

C. All staff and children on the water must be wearing a United States Coast Guard approved personal flotation device sized appropriate to the activity and weight of the individual.

D. At no time shall the occupancy of the watercraft exceed the capacity established for the watercraft by the manufacturer.

E. The watercraft must have on board a sound-producing device for signaling. Such a device may be operated by mouth, hand, or power and it must be able to be heard by persons on the water that indicates the need for participants and staff to return to the shore.

F. Watercrafts shall not enter a swimming area when swimmers are in the water.

2.609 WATERCRAFT ON CLASS I OR II MOVING WATER

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer watercraft on class I or II moving water activities, the following regulations must be complied with:

A. Qualifications:

1. Watercraft Instructor on Class I or II moving water must meet the following qualifications:

a. Must be familiar with rescue techniques with watercrafts on moving water, and meet one of the following qualifications:

1. Hold a current Swiftwater rescue certification from a nationally recognized organization; or

2. Hold a current American Red Cross basic water rescue certificate, hold a current Department-approved First Aid and CPR certification, and eight (8) hours of documented experience indicating knowledge and skill in watercraft instruction and rescue on class I or II moving water specific to the watercraft activities to be conducted and have documented experience of engaging in the activity within the past two (2) years; or

3. Hold a current Red Cross lifeguard training certificate or equivalent training certificate from a nationally recognized organization and eight (8) hours of documented experience indicating knowledge and skill in watercraft instruction and rescue on class I or II moving water specific to the watercraft activities to be conducted and have documented experience of engaging in the activity within the past two (2) years.

2. Watercraft activity leaders on class I or II moving water must be at least eighteen (18) years of age and meet the following qualifications:

a. Four (4) hours of documented experience indicating knowledge and skill in in watercraft instruction and rescue on class I or II moving specific to the watercraft activities to be conducted and have documented experience of engaging in the activity within the past two (2) years; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a Watercraft Instructor on Class I or II moving water.

3. Watercraft Staff must be at least sixteen (16) years of age and the following qualifications:

a. Two (2) hours of documented experience indicating knowledge and skill specific to the watercraft activities taking place.

b. Must be trained as outlined in rule section 2.605(F)(1) by a Watercraft Instructor on Class I or II moving water.

B. Supervision

1. A watercraft instructor on class I or II moving water must always present during all watercraft activities.

2. The ratio while participating in watercraft on class I or class II moving water activities must be at least one to eight (1:8).

3. There must always be a minimum of two (2) staff members at the shoreline and/or on the water when children are on the water. Staff must be positioned in locations where they are able to provide effective surveillance, and in close enough proximity to respond to participants within thirty (30) seconds to execute rescue in an incident/emergency.

a. Before children are permitted to participate in watercraft activities, water safety skills must be tested by properly trained watercraft staff members.

b. There must be one watercraft instructor, activity leader or staff member in any watercraft other than a kayak or paddleboard with children under seven (7) years old.

C. The watercraft instructor must train children and watercraft activity leaders and staff on rescue techniques on moving water.

D. The program must have written policies and procedures on evaluating the safety of the river. Supervising staff must be trained on the policies and procedures.

E. All staff and children on the water must be wearing a United States Coast Guard approved personal flotation device sized appropriate for the activity and to the weight of the individual.

F. Float tubes are prohibited on class I or II moving water.

2.610 WHITE WATER RAFTING ON CLASS III AND IV RIVERS (CLASSES OF RIVERS ARE THOSE AS DEFINED BY THE INTERNATIONAL SCALE OF RIVER DIFFICULTY)

A. If the program operates white water rafting or kayaking, the program must have an active River Outfitter license as defined in section 33-32-102(6), C.R.S., from the Colorado Department of Natural Resources, Parks and Wildlife Commission.

B. If a program provides a white-water rafting experience by purchase from a river outfitter, the license of the river outfitter must be active.

ARCHERY, RIFLERY, AX-THROWING, AND USE OF KNIVES

2.611 ARCHERY

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer archery activities, the following regulations must be complied with:

A. Qualifications

1. Archery Instructor must meet one (1) of the following qualifications:

a. Hold a current USA Archery Basic Archery Instructor level one (1) certification, a certification from a Nationally recognized organization; or

b. Six (6) hours of documented experience indicating knowledge and skill in archery instruction specific to the archery activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. Archery activity leaders must be at least eighteen (18) years of age must meet the following qualifications:

a. Be trained as outlined in rule section 2.605(F)(1) from an archery instructor;

b. Have three (3) hours of documented experience indicating knowledge and skill in archery specific to the archery activities taking place; and

c. Have documented experience of engaging in the activity within the past two (2) years.

3. Archery staff must be at least sixteen (16) years of age and meet the following qualifications:

a. One and half (1.5) hours of documented experience indicating knowledge and skill in archery specific to the archery activities taking place; and

b. Must be trained as outlined in rule section 2.605(F)(1) by an archery instructor.

B. Supervision/ Ratios:

1. An archery instructor or archery activity leader must be present at all times when children are present at the archery range or field.

a. An archery instructor must be on site and available to all archery activity leaders while archery activities are taking place.

2. For every eight (8) active archers there must be at least one (1) archery instructor or archery activity leader present.

3. A qualified staff member must be present supervising observers and maintaining the ratios as defined at the specific ruleset the program is licensed as.

C. The archery range must be free from hazards and well-marked. There shall be a clear path to the target. Traffic, trail, or other camp activities must not be placed in the direction of the flight of the arrows.

D. Equipment must be maintained in a safe condition. Bows and arrows must be inspected for fractures, splinters, or cracks before each use. Damaged bows and arrows must not be utilized.

E. Equipment must be stored in a locked area when not in use. Bows and arrows shall be used only in the specified archery areas.

F. All archers must use the same firing line. Arrows shall be issued only at the firing line by the archery instructor or archery activity leaders.

G. Arrows shall be nocked to bow string after archers are on the firing line and after the signal to shoot has been given.

H. Before arrows are released, archers shall have a definite target.

I. Movement must be controlled by an archery instructor or archery activity leader. All participants must stay behind the firing line until the signal to retrieve arrows is given. All arrows shall be retrieved at the same time.

K. Documentation of rules and procedures must be available for review at the archery range.

L. If the program has field archery, written procedures must be posted to provide safety to the archers and include a procedure for check-in and out of archers and all equipment.

M. Archery tag is prohibited.

2.612 RIFLERY

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer riflery activities, the following regulations must be complied with:

A. Qualifications

1. Range instructor must be at least twenty-one (21) years of age and must meet one (1) of the following qualifications:

   a. Hold a current National Rifle Association instructor's certification; or

   b. Sixteen (16) hours of documented experience indicating knowledge and skill in riflery instruction specific to the riflery activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. Range activity leader must be at least eighteen (18) years of age and must be trained as outlined in rule section 2.605(F)(1) by a riflery instructor and meet one (1) of the following qualifications:

   a. Hold a current National Rifle Association (NRA) Range Safety Officer certification;

   b. Have documentation of a current Hunter Safety Instructor Certification; or

   c. Eight (8) hours of documented experience indicating knowledge and skill in riflery specific to the riflery activities taking place and have documented experience of engaging in the activity within the past two (2) years.

3. Range staff must be at least eighteen (18) years of age and meet the following qualifications:

   a. Four (4) hours of documented experience indicating knowledge and skill in riflery specific to the riflery activities taking; and

   b. Must be trained as outlined in rule section 2.605(F)(1) by a riflery instructor.

B. Supervision:

1. For every six (6) active participants there must be one (1) range instructor or range activity leader present.

2. The following individuals must always be present at the firing line while participants are present:

    a. A range instructor is to directly supervise all live fire on the range.

        (1) If more than one (1) range is active a range instructor must be on site and available to all range activity leaders while rifle activities are taking place.

C. The rifle range must be free from all hazards, away from other activities and traffic of any type; be well marked with danger signs or flags; and all blind approaches must be fenced or blocked off.

1. The range must have a clearly visible sign, or range warning flag system, indicating the operating status of the range (e.g. “CAUTION RANGE IN USE”/ “RANGE CLOSED”)”.

D. Firearms and ammunition must be locked and stored separately.

E. The range must be constructed with an appropriately designed bullet-stop so that all bullets will be stopped behind the targets. The bullet-stop must be free of trees, rocks, boulders, or other objects which may cause a bullet to ricochet from or overshoot the bullet-stop.

F. There must be a well-defined firing line with firing points/ lanes that assist participants in locating their correct target, ensure participants do not interfere with each other during firing; and allow the range instructor or range activity leader to supervise shooters, clear firearm malfunctions, or to otherwise assist shooters as needed.

1. The firing line surface must provide shooters with firm footing. If the firing line is elevated, it must be constructed to provide safe movement of participants on and off the elevated area.

G. Targets must be placed as close to the backstop as practical to elevate off the ground to prevent bullet ricochet off the range floor. Targets shall be constructed of paper, cardboard, wood, or plastic. Steel or glass targets are not permitted.

1. Target holders must be constructed of low ricochet materials such as wood or plastic.

H. Only the following types of guns shall be permitted:

1. .22 caliber rimfire, single-shot, bolt-action rifles having no trigger modification other than the factory setting.

2. Pneumatic spring-type and CO2 air guns may be either .22 caliber or .177 (Ball Bearing (BB) size).

I. All participants must always wear protective eye equipment.

J. All participants must wear appropriate hearing protection when using .22 caliber rimfire, single-shot, bolt-action rifles. All observers and anyone within the range area must wear appropriate hearing protection when .22 caliber rimfire, single-shot, bolt-action rifles are in use.

K. The range instructor or the range activity leader must maintain or supervise the proper condition of the firearms, inspect firearms before and after usage, and clean firearms, as necessary. Firearms that do not function properly must be repaired and tested before usage.

L. Instruction on the use of firearms must be reviewed with all participants prior to participating in the activity.

M. Range rules and emergency procedures must be posted at the range.

N. The range instructor or range activity leader must distribute cartridges at the firing line only. No more than five (5) cartridges at a time should be distributed to a participant.

O. Firing must only be permitted at the firing line.

1. Observers must remain a minimum of fifteen (15) feet behind the firing line at all times. If not firing or training, observers must not be in the firing line area.

P. Any firearm that is not on the firing line ready to fire must have the magazine or cartridge feeding device removed and the chamber unloaded with the action open.

Q. All firearms must be unloaded immediately upon the command “cease firing” regardless of when this command is given. Firearm actions must remain open until further commands are given.

R. Prior to anyone going downrange, or towards the target area, all firearms must have the magazine or cartridge feeding device removed, the chamber unloaded with the action open, the muzzle of the firearm pointed at a safe direction, and movement must be controlled by the range instructor and the range activity leader. A range instructor or range activity leader must remain at the firing line with all firearms.

S. All spent or unspent cartridges must be returned to the range instructor or range activity leader.

2.613 AX-THROWING

If Children’s Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer Ax-throwing activities, the following regulations must be complied with:

A. Qualifications

1. The ax-throwing instructor must meet the following qualifications:

a. Six (6) hours of documented experience indicating knowledge and skill training or in ax-throwing instruction specific to the ax-throwing activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. Ax-throwing activity leaders must be at least eighteen (18) years of age and meet the following:

a. Three (3) hours of documented experience indicating knowledge and skill in ax-throwing specific to the ax-throwing activities taking place and have documented experience of engaging in the activity within the past two (2) years; and

b. Must be trained as outlined in rule section 2.605(F)(1) by an ax-throwing instructor.

3. Ax-throwing staff must be at least sixteen (16) years of age and meet the following:

a. One and half (1.5) hours of documented experience indicating knowledge and skill in ax-throwing specific to the ax-throwing activities taking place; and

b. Must be trained as outlined in rule section 2.605(F)(1) by an ax-throwing instructor.

B. Supervision/ Ratios:

1. An ax-throwing instructor or ax-throwing activity leader must be present at all times when children are present at the Ax-Throwing range.

a. An ax-throwing instructor must be on site and available to all ax-throwing activity leaders while ax-throwing activities are taking place.

2. For every eight (8) throwers there must be at least one ax-throwing instructor or one ax-throwing activity leader present.

C. The ax-throwing course must be free from hazards and well-marked. There shall be a clear, unobstructed path to the target. Traffic, trail, or other camp activities must not be placed in the direction of the path of the axes.

D. The ax-throwing course must have a waiting line and a throwing line that are at least five (5) feet from each other.

E. Equipment must be maintained in a safe condition. Prior to each use axes must be inspected for fractures, splinters, or cracks in the handle. The head of the ax must be secure to the handle with no movement. Damaged axes must not be utilized.

F. Equipment must be stored in a locked area when not in use. Axes shall be used only in the specified ax-throwing areas.

G. All ax throwers shall use the same throwing line. Axes shall be issued only at the throwing line.

H. Axes shall not be thrown until after the signal to throw has been given.

I. Before an ax is released, throwers must have a definite target. Targets must be appropriate for ax throwing.

J. Movement must be controlled by an ax-throwing instructor or ax-throwing activity leader. All persons must stay behind the throwing line until the signal to retrieve axes is given. All axes shall be retrieved at the same time and placed in a designated area.

K. Ax-throwing participants must wear closed-toed shoes. Instructors or activity leaders will need to check participants for any clothing that could obstruct a participant's throwing movement or vision including but not limited to scarves, hoods, or loose-fitting clothing.

L. Instruction on the use of axes, proper throwing techniques must be reviewed with all participants prior to participating in the activity.

M. The ax must never be thrown backwards or from the side.

N. Documentation of rules and procedures must be available for review.

2.614 USE OF KNIFES

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer knife use activities, the following regulations must be complied with:

A. Qualifications

1. All staff participating must be trained in the usage of knives and in the facilities, policies and procedures and have a current Department-approved first aid and CPR training certification.

2. All staff participating must be trained as outlined in rule section 2.605(F)(1) from a supervisor.

B. Supervision

1. Program must develop supervision plans and supervision must be appropriate to the activities and ages of participants. Plans must be available for review by the Department.

C. The program must have policies and procedures regarding the developmentally appropriate practice for the use of knives. The policies and procedures must include the following;

1. Knife safety;

2. Size of blades;

3. Types of knives used;

4. Appropriate supervision and staff to child ratios while using knives; and

5. Storage of knives.

D. Knife usage policies and emergency procedures must be reviewed with all participants prior to participating in the activity.

1. Documentation of rules and procedures must be available for review.

HORSEBACK RIDING

2.615 HORSEBACK RIDING ACTIVITIES

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer horseback riding activities the following rules must be complied with:

A. Qualifications:

1. The horseback riding Instructor must meet one (1) of the following qualifications:

a. A current certificate from a nationally recognized organization or riding school; or

b. Twenty (20) hours of documented experience indicating knowledge and skill in horseback riding instruction specific to the horseback riding activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. Horseback riding activity leader must be at least eighteen (18) years of age and meet the following qualifications:

a. Ten (10) hours of documented experience indicating knowledge and skill in horseback riding instruction specific to the horseback riding activities taking place and have documented experience of engaging in the activity within the past two (2) years; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a horseback riding instructor.

3. Horseback riding staff must be at least sixteen (16) years of age and meet the following qualifications:

a. Five (5) hours of documented experience indicating knowledge and skill in horseback riding specific to the horseback riding activities taking place; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a horseback riding instructor.

B. Supervision

1. There must be one (1) horseback riding instructor or horseback riding activity leader present for every ten (10) or fewer children participating in the riding program.

a. A horseback riding instructor must be on site and available to all horseback riding activity leaders and staff.

2. Trail Ride:

a. There must be an individual with current Department-approved CPR and First Aid certification present for each trail ride.

b. There must be at least two (2) staff present for each trail ride meeting the following qualifications:

1. A riding instructor or riding activity leader; and

2. A riding staff member.

c. Staff must have a communications plan during all trail rides.

C. No participant is allowed in the barn area and riding area unless the horseback riding instructor or a Riding activity leader is present.

D. The riding instructor or riding activity leader must determine the child's riding experience and level of skill and must take these into account in assigning which horse each child should ride and determining the type of riding activity in which each child should engage.

E. The emergency procedures must be posted in the barn, stable, ring, or commonly used areas and include information required in section 13-21-119, C.R.S.

F. The riding supervisor or riding instructor must review all riding rules with participants prior to participating in any riding activities.

G. Children and staff shall be appropriately dressed for riding, which must include closed toed shoes or boots and long pants.

H. The riding supervisor or riding instructor must evaluate the footgear of each child and make the stirrups safe for each child's shoe or boot.

I. All children and staff must wear properly fitted helmets designed for equestrian use according to ASTM F1163-15 standards while riding as defined and explained by ASTM international at https://www.play.org/f1163-15.html (February 2023), herein incorporated by reference. No later editions or amendments are incorporated. These resources are available at no cost from ASTM International at ASTM.org. These resources are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours.

1. Helmets must be replaced according to the manufacturer's recommendations or at least every five (5) years.

J. The horseback riding equipment shall be in good condition, properly sized and adjusted for each rider. All equipment must be used and maintained according to the manufacture recommendations.

K. Any hazardous items and materials including but not limited to tools and medications must be inaccessible to children.

L. The horse barn or stable, ring, and commonly used trail(s) shall be in good repair and free of dangerous obstructions.

M. Horses shall be cared for with evidence of an adequate feeding schedule, fresh water must be readily available and procedures in place to care for sick horses.

N. Horses must not be permitted in the other designated activity areas.

CLIMBING

2.616 ROCK CLIMBING AND CLIMBING WALLS

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer basic/top roped climbing, which includes such topics as the care and use of basic equipment, knots, and belaying, verbal signals, and or techniques of rappelling, the following rules must be complied with:

A. Qualifications:

1. Climbing instructor must meet one (1) of the following qualifications:

a. Have a current top-roped climbing instructor certification; or

b. Sixteen (16) hours of documented experience indicating knowledge and skill in knots, anchors, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, and climbing instruction specific to the rock-climbing activities taking place, and have documented experience of engaging in the activity within the past two (2) years.

c. If an auto-belay device is used:

(1) The instructor must have four (4) hours of documented experience indicating knowledge and skill in use and operation of the auto belay device, knots, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, specific to the climbing activities taking place, and have

documented experience of engaging in the activity within the past two (2) years.

2. Climbing activity leaders must be at least (18) years of age, have documentation of a skills verification, must be trained as outlined in rule section 2.605(F)(1) by a climbing instructor and meet one (1) of the following qualifications:

   a. Must have verified knowledge of technical climbing by completion of a course or climbing school; or

   b. Eight (8) hours of documented experience from a climbing supervisor indicating knowledge and skill in knots, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, and climbing instruction specific to the rock-climbing activities taking place and have documented experience of engaging in the activity within the past two (2) years.

   c. If an auto-belay device is used:

      (1) The activity leader must have at least two (2) hours of documented experience indicating knowledge and skill in use and operation of the auto belay device, knots, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, specific to the climbing activities taking place, and have documented experience of engaging in the activity within the past two (2) years.

3. Climbing staff must be at least sixteen (16) years of age and meet the following qualifications:

   a. Four (4) hours of documented experience indicating knowledge and skill in knots, anchors, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, specific to the rock-climbing activities taking place, and have documented experience of engaging in the activity within the past two (2) years.

   b. If an auto-belay device is used:

      (1) The climbing staff must have at least one (1) hour of documented experience indicating knowledge and skill in use and operation of the auto belay device, knots, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, specific to the climbing activities taking place, and have documented experience of engaging in the activity within the past two (2) years.

B. Supervision:

1. At least two (2) rock-climbing staff must be present at the climbing site at all times. At least one of the staff must be a rock-climbing instructor or activity leader.

   a. A rock-climbing instructor must be on site and available to all rock-climbing activity leaders and climbing staff while rock climbing activities are taking place.

2. For every eight (8) active climbers there must be at least one (1) rock climbing instructor or rock-climbing activity leader present.

3. A qualified staff member must be present supervising observers maintaining the ratios as defined at the specific ruleset the program is licensed as.

C. The climbing instructor shall approve guidelines for the proper maintenance of all climbing equipment used. Equipment shall be checked by the instructor or activity leader immediately prior to use.

D. All rock-climbing equipment shall be maintained and replaced according to the manufacture recommendations and be visually and physically inspected before each climb.

E. Climbers in a natural outdoor environment must wear helmets specifically designed for the activity at all times when in designated helmet zones.

1. When an auto belay device is used, a helmet should not be worn.

F. The program shall not permit an unsupervised climb.

G. The climbing supervisor or climbing activity leader must have knowledge of where the climb will occur and must give approval prior to the activity taking place.

H. Each rock climber must be visually supervised.

I. All climbers and rappellers shall be belayed in a manner consistent with current industry standards.

J. Belayers must be instructed in proper procedures, and directly supervised until their skills have been verified by a climbing instructor.

2.617 SINGLE AND/OR MULTI-PITCH CLIMBING (DOES NOT INCLUDE TOP-ROPED CLIMBING)

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer single or multi-pitch climbing, the following rules must be complied with:

A. Qualifications:

1. Single or multi-pitch climbing instructors must meet the one (1) of following qualifications:

a. An American Mountain Guides Association (AMGA) multi-pitch instructor course and have passed the AMGA Single Pitch Instructor assessment; or

b. Sixteen (16) hours of documented experience indicating knowledge and skill in knots, anchors, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, and climbing instruction specific to the rock-climbing activities taking place; and

(1) Documentation that the individual has led or shared lead on ten (10) single or multi-pitch rock routes within the last two (2) years.

2. Single or multi- pitch climbing activity leaders must be at least eighteen (18) years of age and have knowledge of rescue techniques, documentation of a skills verification, must be trained as outlined in rule section 2.605(F)(1) by a climbing instructor and meet one (1) of the following qualifications:

a. Have a current AMGA single pitch instructor certification; or

b. Eight (8) hours of documented experience indicating knowledge and skill in knots, anchors, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, and climbing instruction specific to the rock-climbing activities taking place and have documented experience of engaging in the activity within the past two (2) years.

3. Climbing staff must be at least sixteen (16) years of age and meet the following qualifications:

a. Four (4) hours of documented experience indicating knowledge and skill in knots, anchors, safety zones, verbal signals, belaying, rappelling, and safe tie-ins, specific to the rock-climbing activities taking place, and have documented experience of engaging in the activity within the past two (2) years; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a single or multipitch climbing instructor.

B. Supervision:

1. At least two (2) staff must be present at the climbing site at all times one of the two (2) staff must be a single or multi pitch climbing instructor or activity leader.

a. A single or multi pitch rock-climbing instructor must be on site and available to all rock-climbing activity leaders while rock climbing activities are taking place.

2. For every three (3) climbers there must be at least one rock climbing instructor or rock-climbing activity leader present.

C. No climbing instructor shall take participants on a climb the climbing instructor has not completed previously.

D. The multi-pitch climbing instructor must assess the ability of all children participating as to the difficulty of the climb.

E. The single or multi-pitch climbing instructor must have knowledge of where the climb will occur and must give approval prior to the activity taking place.

F. No child will be the rope leader unless their skills have been verified by a climbing instructor.

2.618 HIGH AND/OR LOW ROPES CHALLENGE COURSES AND ZIPLINES

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer high and/or low ropes challenge courses, a climbing wall as part of a ropes course, or ziplines the following rules must be complied with:

A. Qualifications:

1. Challenge course instructor must meet one (1) of the following qualifications:

a. Hold a current certification specific to that activity or challenge course "system" from a recognized organization or certifying body. If the certificate does not have an "expiration date," the certificate must have been completed within the past two (2) years; and the supervisor must have documented experience of engaging in the activity within the past two (2) years;

b. If the course involves high ropes the challenge course instructor must have sixteen (16) hours of documented experience indicating knowledge and skill in challenge course instruction related to the challenge course activities taking place and have documented experience of engaging in the activity within the past two (2) years; or

c. If the course involves only low ropes the challenge course instructor must have eight (8) hours documented experience indicating knowledge and skill in challenge course instruction related to the challenge course activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. The challenge course activity leader must be at least eighteen (18) years of age, must have documentation of skills verification, and must be trained as outlined in rule section 2.605(F)(1) from an individual that is qualified as a challenge course instructor and must meet the following qualifications:

a. If the course involves high ropes the challenge course activity leader must have ten (10) hours of documented experience indicating knowledge and skill in challenge course instruction specific to the challenge course activities taking place, and have documented experience of engaging in the activity within the past two (2) years; and

b. If the course involves only low ropes the challenge course activity leader must have five (5) hours of documented experience indicating knowledge and skill in challenge course instruction to the challenge course activities taking place and have documented experience of engaging in the activity within the past two (2) years.

3. Challenge course staff must be at least sixteen (16) years of age and must be trained as outlined in rule section 2.605(F)(1) from an individual that is qualified as a challenge course instructor and meet one (1) of the following qualifications:

a. If the course involves high ropes the challenge course staff must have five (5) hours of documented experience indicating knowledge and skill in challenge course instruction specific to the challenge course activities taking place; or

b. If the course involves only low ropes, the challenge course staff must have three (3) hours of documented experience indicating knowledge and skill in challenge course instruction specific to the challenge course activities taking place.

B. Supervision:

1. At least two (2) staff must be present at the course site at all times. One (1) of the two (2) staff members must be a challenge course activity leader.

a. A challenge course instructor must be on site and available to all challenge course activity leaders while challenge course activities are taking place.

b. For every eight (8) participants there must be at least one challenge course instructor or challenge course activity leader present.

C. Ropes course elements must have written evidence of annual inspection for integrity of all hardware, materials, and equipment by an individual qualified through a nationally recognized organization such as: Association of Challenge Course Technology (ACCT).

D. Ropes courses must be use as designed and inspected regularly by the rope supervisor or the rope instructor.

E. All equipment and elements of a rope course must be safety checked prior to each use and have written records of regular inspection and maintenance of all equipment and elements utilized. Equipment must be maintained and replaced per manufactures' recommendations.

F. Children must wear safety equipment appropriate for the activity.

G. Children must wear properly fitted helmets when using the high ropes course.

H. At all times, there must be a rope supervisor or rope instructor on the ropes course with children.

I. Ropes courses must be off limits to children when a rope supervisor or rope instructor is not present and access to ropes course must be controlled

J. The program must have written safety procedures for use of the ropes course(s). Staff must be trained in the safety procedures.

HIKING, BACKPACKING, AND CAMPING

2.619 HIKING

If School-Age Child Care Centers, Children's Resident Camps, or Neighborhood Youth Organizations offer hiking activities, the following rules must be complied with:

A. Qualifications

1. Hiking instructor must meet the following qualifications:

a. Hold a current Department-approved First Aid certification; and

b. Six (6) hours of documented experience indicating knowledge and skill in the symptoms and correct treatment procedures for hypothermia and dehydration and hiking instruction specific to the hiking activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. Hiking activity leaders must be at least eighteen (18) years of age and meet the following qualifications:

a. Three (3) hours of experience specific to the hiking activities taking place;

b. Hold a current Department-approved First Aid certification; and

c. Must be trained as outlined in rule section 2.605(F)(1) by a hiking instructor.

3. Hiking staff must be at least sixteen (16) years of age and meet the following qualifications:

a. Must be trained as outlined in rule section 2.605(F)(1) by a hiking instructor; and

b. One and a half (1.5) hours of documented experience indicating knowledge and skill in hiking specific to the hiking activities taking place.

B. Supervision & Ratios

1. Staff must continually observe and monitor participants on the trail including monitoring of symptoms including but not limited to sunburn, dehydration, fatigue, hypothermia, and heat related illness.

2. At least two (2) hiking activity leaders must accompany a group in hikes. Hiking groups may divide up as long as hikers are always with one activity leader and activity leaders are in visual, verbal or electronic (radio or wireless communication) contact with each other.

C. In selecting the area for hiking, the hiking instructor must consider the hiker's age, physical condition, and experience, as well as the season, weather trends during the trip, methods of evacuation, and communication.

D. The program must have written safety procedures for hiking, including the written policies and procedures for evacuating a child that becomes sick or injured on a hike. Hiking activity leaders and children must be trained on the safety procedures and policies.

E. Before participation, children must be instructed on:

1. The fundamental safety procedures to follow on the trail;

2. Procedures to follow if separated from the group;

3. Proper health and sanitation procedures on the trail;

4. Rules and regulations of the governing land where the hiking occurs;

5. Potential high-risk areas;

6. Environmental hazard; and

7. Procedures when encountering animals.

F. Each hiker shall be equipped with protective clothing against natural elements such as rain, snow, wind, cold, sun, and insects.

G. An itinerary of the hiking trip and a list of all participants on the hike must be kept at the program.

H. If any off-trail hiking occurs during the trip, staff must have experience in traveling off trail including back country navigation.

2.620 BACKPACKING AND CAMPING

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer backpacking or camping trips where the basic needs for operation, such as places of dwelling, water supply systems, and permanent toilet and or cooking facilities are not usually provided, the overnight requirements for each type of program must be followed according to rules for that license type in addition to the following requirements:

A. Qualifications

1. Backpacking/camping instructor must meet the following qualifications:

a. Hold a current Department-approved First Aid and CPR certification; and

b. Eight (8) hours of documented experience indicating knowledge and skill in the symptoms and correct treatment procedures for hypothermia and dehydration and backpacking and camping instruction specific to the backpacking and camping activities taking place and have documented experience of engaging in the activity within the past two (2) years.

2. Backpacking/Camping activity leaders must be at least eighteen (18) years of age and meet the following qualifications:

a. Hold a current Department-approved First Aid certification;

b. Must be trained as outlined in rule section 2.605(F)(1) by a backpacking/ camping instructor; and

c. Four (4) hours of experience specific to the backpacking/camping activities taking place.

3. Backpacking/Camping staff must be at least sixteen (16) years of age and meet the following qualifications:

a. Two (2) hours of experience specific to the backpacking/camping activities taking place; and

b. Must be trained as outlined in rule section 2.605(F)(1) by a backpacking/ camping instructor.

B. Supervision and Ratios

1. Staff must continually observe and monitor participants on the trip including monitoring of symptoms including but not limited to: sunburn, dehydration, fatigue, hypothermia, and heat related illness.

2. Appropriate staff-to-child ratios must be maintained, but there must be at least two (2) staff members accompanying each trip. One (1) staff member must be at least eighteen (18) years of age, unless otherwise defined in an applicable rule.

a. If the program license type allows the trip to exceed two (2) nights, there must be one (1) backpacking/camping instructor who is at least twenty-one (21) years of age.

3. At no time may a child be left without qualified supervision. Sleeping quarters of the staff must be within sight or hearing distance of the sleeping quarters of the children whom they supervise.

4. Children must sleep in the same room or tent with individuals that are consistent with their gender identity.

5. In gender-segregated facilities where undressing in the presence of others occurs, camps shall make reasonable accommodations to allow access consistent with an individual's gender identity.

C. The backpacking /camping instructor shall consider the hiker's age, physical condition, and experience, as well as the season, weather trends during the trip, methods of evacuation and communication, and availability of water when selecting the area for backpacking or camping.

D. The program must have written safety procedures for backpacking or camping, including the written policies and procedures for evacuating a child that becomes sick or injured. Staff and children must be trained in the safety policies and procedures.

E. Before participation, children shall have a safety orientation and be instructed on the applicable precautions, such as:

1. The fundamental safety procedures to follow on the trip;

2. Procedures for a hiker if separated from the group;

3. Proper health procedures, including the need for drinking fluids and eating appropriate foods;

4. Sanitation procedures;

5. Rules and regulations of the governing land where the camping or backpacking occurs;

6. Potential high-risk areas which may be found on the trip;

7. Environmental hazards; and

8. Procedures when encountering animals.

F. Children shall be oriented to minimum impact guidelines and techniques.

G. Each child shall be equipped with protective clothing and equipment against anticipated natural elements such as rain, snow, wind, cold, sun, and insects.

H. Adequate shelters such as a tent must be available for each child. The shelter occupancy must be in compliance with the manufacturers' recommendations.

1. All structures used by children must be kept in good repair at all times.

2. If fabric structures are used, they must be constructed of fire and flame-retardant material.

I. Each child must be provided with their own mat, pad, bed, sleeping bag, or cot.

J. The program must have emergency plans for all locations.

1. Plans must be available for the Department to review.

2. Plans must be available for parents or guardians.

3. All staff must be trained in emergency plans for all trip locations prior to trips.

K. There must be a day-to-day itinerary prepared prior to departure.

1. The Itinerary must include a list of all participants.

2. Sources of emergency care and methods of communication with such facilities as hospitals, police, and forest service must be identified for each campsite on the itinerary.

3. The program director must have access to a copy of the itinerary.

4. The itinerary must be followed as closely as possible.

5. The program director must be notified of an itinerary change as soon as possible.

6. The itinerary must be available to the Department, parents, and local police.

L. Programs must have a contingency plan/plan for facilities to use during adverse weather and air quality index advisory Unhealthy for Sensitive Groups explained by the Environmental Protection Agency (EPA) at https://www.airnow.gov/sites/default/files/2018-04/aqi_brochure_02_14_0.pdf (Feb. 2024), herein incorporated by reference. No later editions or amendments are incorporated. These resources are available at no cost from the Environmental Protection Agency (EPA) at https://www.airnow.gov/aqi/aqi-basics/. These resources are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours. The plan must be available to parents/guardians.

M. A copy of the current statement which has been signed and dated by the parent or guardian indicating that the camp staff may obtain emergency medical care must be readily available to the staff accompanying the participants.

N. If any off-trail backpacking or camping occurs during the trip, staff must have experience in traveling off trail including back country navigation.

BIKING

2.621 BIKING ON PUBLIC ROADS OR MOUNTAIN TRAILS

If Children's Resident Camps, School-Age Child Care Centers, or Neighborhood Youth Organizations offer bicycling trips, the following rules must be complied with:

A. Staff Qualifications

1. The biking instructor must meet the following qualifications:

a. Hold a current Department-approved First Aid certification; and

b. Six (6) hours of documented experience indicating knowledge and skill in biking specific to the biking activities taking place, and must be familiar with state laws about bicycling; be knowledgeable about the type of bicycling terrain where the bicycle trips will occur; know how to make simple bicycle repairs; how to properly fit a bike and select necessary equipment; and have documented experience of engaging in the activity within the past two (2) years.

2. Biking activity leaders must be at least eighteen (18) years of age and meet the following qualifications:

a. Hold a current Department-approved First Aid certification; and

b. Biking activity leaders must be trained as outlined in rule section 2.605(F)(1) by a biking instructor; and

c. Three (3) hours of experience specific to the biking activities taking place.

3. Biking Staff must be at least sixteen (16) years of age and meet the following qualifications:

a. Must be trained as outlined in rule section 2.605(F)(1) by a biking instructor; and

b. One and a half (1.5) hours of experience specific to the biking activities taking place.

B. Supervision and Ratios

1. For every eight (8) bikers there must be at least one (1) biking instructor or biking activity leader present.

2. At least two (2) biking staff must accompany a group while biking. One (1) must be a biking activity leader.

3. Biking groups may divide up as long as bikers are always with one (1) activity leader and activity leaders are in visual, verbal or electronic (radio or wireless communication) contact with each other.

C. The program must have written safety procedures of bike trips, including the written policies for evacuating a child that becomes sick or injured on a bike trip. Staff and children must be trained on the safety procedures and policies.

D. Each rider shall wear head protection specifically designed for the type of biking activity according to ASTM F1447-18 standards while riding as defined and explained by ASTM international at https://www.astm.org/f1447-18.html (June 25, 2018), herein incorporated by reference. No later editions or amendments are incorporated. These resources are available at no cost from ASTM International at ASTM.org. These resources are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours.

E. The bicycle shall be equipped with brakes in working condition. Bicycles must be properly maintained, inspected prior to each bicycling trip, and adjusted to the size of the child riding the bicycle.

F. Equipment must be maintained and replaced per manufacturers' recommendations.

G. If the program allows children to use their own bicycles the biking staff or supervisor must inspect the bike to verify that the bicycle is appropriate for the activity, in good condition, properly maintained, and adjusted to the size of the child riding the bicycle prior to participating.

H. An appropriate bicycle repair kit must be taken on each trip.

I. The biking supervisor or staff must instruct children as to emergency procedures, safe riding practices, and road and trail etiquette.

J. The biking supervisor or staff shall evaluate each child as to their physical capability to participate in the planned bicycling trip, keeping in mind the trip length, terrain, altitude of the trip, and weather conditions.

K. An itinerary of the biking trip and a list of all participants on the biking trip must be kept at the program.

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